

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO S.B. 1473
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 6.1, Arizona Revised
3 Statutes, is amended by adding section 9-462.15, to read:

4 9-462.15. Assisted living homes; assisted living facilities;
5 occupancy cap; zoning regulations; relief;
6 applicability; statewide preemption; definitions

7 A. A MUNICIPALITY MAY NOT ADOPT, ENFORCE OR MAINTAIN ANY LAW,
8 ORDINANCE OR OTHER REGULATION RELATING TO THE OPERATION OF AN ASSISTED
9 LIVING HOME OR ASSISTED LIVING FACILITY THAT DOES ANY OF THE FOLLOWING:

10 1. IMPOSES A CAP ON THE NUMBER OF RESIDENTS WHO MAY RESIDE AT AN
11 ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY THAT IS LOWER THAN THE
12 NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36, CHAPTER 4,
13 RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE ASSISTED LIVING
14 HOME'S OR ASSISTED LIVING FACILITY'S LICENSE.

15 2. RESTRICTS AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY
16 FROM OPERATING IN AN AREA THAT IS ZONED FOR RESIDENTIAL USE BASED ON
17 EITHER OF THE FOLLOWING:

18 (a) THE NUMBER OF RESIDENTS WHO RESIDE AT THE ASSISTED LIVING HOME
19 OR ASSISTED LIVING FACILITY IF THE NUMBER OF RESIDENTS IS IN COMPLIANCE
20 WITH THE NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36,
21 CHAPTER 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE
22 ASSISTED LIVING HOME'S OR ASSISTED LIVING FACILITY'S LICENSE.

23 (b) THE CLASSIFICATION OF THE ASSISTED LIVING HOME OR ASSISTED
24 LIVING FACILITY AS A HEALTH CARE INSTITUTION OR ASSISTED LIVING USE.

25 3. REQUIRES AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY TO
26 OBTAIN A VARIANCE, CONDITIONAL USE PERMIT, REASONABLE ACCOMMODATION OR

1 REZONING BASED SOLELY ON THE NUMBER OF RESIDENTS WHO RESIDE AT THE
2 ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY.

3 B. A MUNICIPALITY MAY [ADOPT,] ENFORCE [APPLICABLE] [OR MAINTAIN]
4 BUILDING, FIRE, SAFETY AND HEALTH CODES AND REGULATIONS [THAT ARE RELATED
5 TO AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY] IF THE CODES AND
6 REGULATIONS ~~[ARE BOTH OF THE FOLLOWING:~~

7 ~~1. APPLIED UNIFORMLY TO ALL SIMILAR RESIDENTIAL DWELLINGS.~~

8 ~~2.] DO NOT HAVE THE EFFECT OF IMPOSING AN OCCUPANCY LIMIT THAT IS~~
9 MORE RESTRICTIVE THAN THOSE THAT ARE ALLOWED PURSUANT TO TITLE 36, CHAPTER
10 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE ASSISTED
11 LIVING HOME'S OR ASSISTED LIVING FACILITY'S LICENSE.

12 C. A PERSON MAY ASSERT A VIOLATION OF THIS SECTION AND MAY BRING AN
13 ACTION FOR DECLARATORY OR INJUNCTIVE RELIEF IN A COURT OF COMPETENT
14 JURISDICTION. THE COURT MAY AWARD ATTORNEY FEES AND COSTS TO A PREVAILING
15 PLAINTIFF.

16 D. THE OCCUPANCY ~~[OR ZONING]~~ REGULATION OF AN ASSISTED LIVING HOME
17 OR ASSISTED LIVING FACILITY IS OF STATEWIDE CONCERN. THE OCCUPANCY ~~[OR~~
18 ~~ZONING]~~ REGULATION OF AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY
19 PURSUANT TO THIS SECTION IS NOT SUBJECT TO FURTHER REGULATIONS BY A
20 MUNICIPALITY AND PREEMPTS ALL INCONSISTENT LAWS, ORDINANCES OR OTHER
21 REGULATIONS [THAT LIMIT THE OCCUPANCY OF AN ASSISTED LIVING HOME OR
22 ASSISTED LIVING FACILITY AND THAT ARE] ADOPTED BY THE MUNICIPALITY.

23 E. FOR THE PURPOSES OF THIS SECTION:

24 1. "ASSISTED LIVING FACILITY" HAS THE SAME MEANING PRESCRIBED IN
25 SECTION 36-401.

26 2. ASSISTED LIVING HOME" HAS THE SAME MEANING PRESCRIBED IN SECTION
27 36-401.

28 3. "HEALTH CARE INSTITUTION" HAS THE SAME MEANING PRESCRIBED IN
29 SECTION 36-401.

30 Sec. 2. Title 11, chapter 6, article 2, Arizona Revised Statutes,
31 is amended by adding section 11-820.05, to read:

32 11-820.05. Assisted living homes; assisted living facilities;
33 occupancy cap; zoning regulations; relief;
34 applicability; statewide preemption; definitions

35 A. A COUNTY MAY NOT ADOPT, ENFORCE OR MAINTAIN ANY LAW, ORDINANCE
36 OR OTHER REGULATION RELATING TO THE OPERATION OF AN ASSISTED LIVING HOME
37 OR ASSISTED LIVING FACILITY THAT DOES ANY OF THE FOLLOWING:

38 1. IMPOSES A CAP ON THE NUMBER OF RESIDENTS WHO MAY RESIDE AT AN
39 ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY THAT IS LOWER THAN THE
40 NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36, CHAPTER 4,
41 RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE ASSISTED LIVING
42 HOME'S OR ASSISTED LIVING FACILITY'S LICENSE.

1 2. RESTRICTS AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY
2 FROM OPERATING IN AN AREA THAT IS ZONED FOR RESIDENTIAL USE BASED ON
3 EITHER OF THE FOLLOWING:

4 (a) THE NUMBER OF RESIDENTS WHO RESIDE AT THE ASSISTED LIVING HOME
5 OR ASSISTED LIVING FACILITY IF THE NUMBER OF RESIDENTS IS IN COMPLIANCE
6 WITH THE NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36,
7 CHAPTER 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE
8 ASSISTED LIVING HOME'S OR ASSISTED LIVING FACILITY'S LICENSE.

9 (b) THE CLASSIFICATION OF THE ASSISTED LIVING HOME OR ASSISTED
10 LIVING FACILITY AS A HEALTH CARE INSTITUTION OR ASSISTED LIVING USE.

11 3. REQUIRES AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY TO
12 OBTAIN A VARIANCE, CONDITIONAL USE PERMIT, REASONABLE ACCOMMODATION OR
13 REZONING BASED SOLELY ON THE NUMBER OF RESIDENTS WHO RESIDE AT THE
14 ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY.

15 B. A COUNTY MAY [ADOPT,] ENFORCE [APPLICABLE] [OR MAINTAIN]
16 BUILDING, FIRE, SAFETY AND HEALTH CODES AND REGULATIONS [THAT ARE RELATED
17 TO AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY] IF THE CODES AND
18 REGULATIONS ~~[ARE BOTH OF THE FOLLOWING:~~

19 ~~1. APPLIED UNIFORMLY TO ALL SIMILAR RESIDENTIAL DWELLINGS.~~

20 ~~2.]~~ DO NOT HAVE THE EFFECT OF IMPOSING AN OCCUPANCY LIMIT THAT IS
21 MORE RESTRICTIVE THAN THOSE THAT ARE ALLOWED PURSUANT TO TITLE 36,
22 CHAPTER 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE
23 ASSISTED LIVING HOME'S OR ASSISTED LIVING FACILITY'S LICENSE.

24 C. A PERSON MAY ASSERT A VIOLATION OF THIS SECTION AND MAY BRING AN
25 ACTION FOR DECLARATORY OR INJUNCTIVE RELIEF IN A COURT OF COMPETENT
26 JURISDICTION. THE COURT MAY AWARD ATTORNEY FEES AND COSTS TO A PREVAILING
27 PLAINTIFF.

28 D. THE OCCUPANCY ~~[OR ZONING]~~ REGULATION OF AN ASSISTED LIVING HOME
29 OR ASSISTED LIVING FACILITY IS OF STATEWIDE CONCERN. THE OCCUPANCY ~~[OR~~
30 ~~ZONING]~~ REGULATION OF AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY
31 IS NOT SUBJECT TO FURTHER REGULATIONS BY A COUNTY AND PREEMPTS ALL
32 INCONSISTENT LAWS, ORDINANCES OR OTHER REGULATIONS [THAT LIMIT THE
33 OCCUPANCY OF AN ASSISTED LIVING HOME OR ASSISTED LIVING FACILITY AND THAT
34 ARE] ADOPTED BY THE COUNTY.

35 E. FOR THE PURPOSES OF THIS SECTION:

36 1. "ASSISTED LIVING FACILITY" HAS THE SAME MEANING PRESCRIBED IN
37 SECTION 36-401.

38 2. "ASSISTED LIVING HOME" HAS THE SAME MEANING PRESCRIBED IN SECTION
39 36-401.

40 3. "HEALTH CARE INSTITUTION" HAS THE SAME MEANING PRESCRIBED IN
41 SECTION 36-401.

1 Sec. 3. Severability

2 If a provision of this act or its application to any person or
3 circumstance is held invalid, the invalidity does not affect other
4 provisions or applications of the act that can be given effect without the
5 invalid provision or application, and to this end the provisions of this
6 act are severable.

7 Enroll and engross to conform

8 Amend title to conform

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